



February 3, 2025

Nyree Hinton

616 Masselin Ave

Los Angeles California 90036

Re: JAG2501941 Hinton vs Jaguar SAJDD1GX4LCK67497

Dear Nyree Hinton,

To be eligible, your vehicle must fall under the Song Beverly Act. Section 1793.22 of the Song Beverly Act states that a “New motor vehicle” means a “new motor vehicle” (including the chassis cab of a motor home, a dealer-owned vehicle, a “demonstrator,” or other vehicle sold with a manufacturer’s new car warranty.)

Per Rodriguez v. FCA US, LLC, S274625 and the Supreme Court of California’s decision regarding the interpretation of the phrase “other motor vehicle sold with a manufacturer’s new car warranty”, your vehicle would not be eligible as it did not have the manufacturer’s new vehicle warranty issued at the time of sale or lease.

The Supreme Court of California has concluded that a motor vehicle purchased with an unexpired manufacturer’s new car warranty does not qualify as a ‘motor vehicle sold with a manufacturer’s new car warranty’ under section 1793.22 of the Song Beverly Act unless the new car warranty was issued with the sale.

If you disagree with our eligibility determination, you may submit a written appeal that can be uploaded via the Dispute Resolution Portal. Please upload your written statement and select the CA Consumer Appeal document tag

1. The appeal must be received within 30 days from the date of this notification.
2. The manufacturer will be given five (5) days to submit comments.
3. If the manufacturer does comment on your appeal, you will then be provided five (5) days to provide return comments.
4. An arbitrator will decide if your dispute is within our jurisdiction to arbitrate in 30 days.
5. If the arbitrator determines that your claim should be eligible to proceed, a new claim will be opened at that time. Please note that the arbitrator ruling on your appeal will only decide whether your claim may be heard in arbitration. If this arbitrator decides that your claim is within the program's jurisdiction, the arbitrator who presides over the subsequent hearing will examine all the facts in your case including jurisdiction

Sincerely,

Joelybeth Ortiz